Elena Kagan

Elena Kagan (born April 28, 1960, New York, New York, U.S.) is an associate justice of the Supreme Court of the United States from 2010.

TABLE OF CONTENTS

- Introduction
- Education and early career
- Nomination to the Supreme Court
- Supreme Court opinions

Education and early career

Kagan, the daughter of Robert Kagan, a

Elena Kagan

Chief Justice John G. Roberts, Jr., swearing in Elena Kagan as an associate justice of the U.S. Supreme Court, August 7, 2010.

lawyer, and Gloria Gittelman Kagan, an elementary school teacher, was raised in New York City. She received a B.A. in history from Princeton University in 1981 and then studied on a fellowship at the University of Oxford, where she received an M.Phil. in 1983. Afterward she attended Harvard Law School, where she was awarded a J.D. in 1986. Upon receiving her law degree, Kagan spent several years clerking, first for Abner Mikva, who served on the U.S. Court of Appeals for the District of Columbia Circuit, and then for Thurgood Marshall, associate justice of the U.S. Supreme Court.

Kagan spent a few years in private practice in Washington, D.C., before becoming a law professor at the University of Chicago (where the future U.S. president Barack Obama also taught). Plucked out of academia by Pres. Bill Clinton, she served as associate White House counsel (1995–96) and then as deputy assistant (1997–99) to Clinton Clinton appointed

netskope Adopt AI with Confidence

Kagan to the U.S. Court of Appeals for the District of Columbia Circuit, but the Republican-controlled Senate Judiciary Committee scheduled no hearings on her nomination. Future chief justice of the United States John G. Roberts was subsequently nominated to the post after George W. Bush became president.

Thereafter she returned to academia at Harvard Law School, where she taught administrative law, constitutional law, and civil procedure and in 2003 was appointed dean (by Harvard president Lawrence H. Summers, who went on to serve in the Obama administration), overseeing fund-raising, improving student life, and developing a reputation as a pragmatist able to reduce tension among Harvard's notoriously fractious law faculty. In 2009 she was appointed by Obama to serve as the U.S. solicitor general; she was confirmed (61–31) by the U.S. Senate on March 19, becoming the first woman to occupy the post.

Nomination to the Supreme Court

Kagan, Elena; Obama, Barack

U.S. Solicitor General Elena Kagan (left) with Pres. Barack Obama in the Oval Office, April 2010.

On May 10, 2010, Kagan was nominated by Obama to replace retiring justice John Paul Stevens on the U.S. Supreme Court. Because of her reputation for reaching out to conservatives—she had recruited several conservative professors at Harvard, hosted a dinner honoring conservative justice Antonin Scalia(1936–2016), and received a standing ovation from the conservative Federalist Society—some liberals feared that she might not be a reliable vote for the court's liberal minority, though she was a passionate advocate of civil rights, including gay rights. Kagan was confirmed (63–37) by the Senate in August 2010.

Supreme Court opinions

Kagan has satisfied her liberal observers in most of her Supreme Court opinions. In *Miller* v. *Alabama* (2012), for example, she acted on behalf of the Court's majority in overturning two lower court rulings that had upheld the mandatory sentencing of two 14-year-olds, each of whom had been convicted of murder, to life in prison

without the possibility of parole. In their appeal of the sentences, lawyers for the plaintiffs argued that, in view of their age, the juveniles had been subjected to "cruel and unusual punishments," in violation of the Eighth Amendment. Kagan cited earlier Court decisions regarding juvenile offenders that had prohibited capital punishment for homicide crimes and life without parole for other crimes; likened life in prison without parole to capital punishment; and generally established that "the distinctive attributes of youth diminish the penological justifications for imposing the harshest sentences on juvenile offenders." And because the juveniles were sentenced under state laws mandating life in prison without parole, the sentencer wrongly declined to take their age into account or "assess… whether the law's harshest term of imprisonment proportionately punishes a juvenile offender."

In another majority opinion, *Cooper* v. *Harris* (2017), Kagan upheld a district court's ruling that North Carolina's redistricting after the census of 2010 was unconstitutional because it amounted to a violation of the equal protection clause of the Fourteenth Amendment. Citing earlier Court rulings, Kagan agreed that race was "the predominant factor" in the state's redrawing of two electoral districts and that the redistricting did not serve a "compelling interest" and was not "narrowly tailored for that purpose." Specifically, North Carolina redrew two electoral districts whose voting-age populations were not predominantly Black, with the result that the Black population in each district increased to above 50 percent. According to plaintiffs in the district court case, the influence of Black voters was then reduced in surrounding districts. Kagan affirmed that the redistricting amounted to racial gerrymandering, which the Court had earlier found to be in violation of the Civil Rights Act of 1964 and inconsistent with the equal protection clause.

In *Dobbs* v. *Jackson Women's Health Organization* (2022), Kagan and her two liberal colleagues, justices Ketanji Brown Jackson and Sonia Sotomayor, coauthored a dissenting opinion in *Dobbs* v. *Jackson Women's Health Organization* (2022), in which the Court's conservative majority eliminated the constitutional right to abortion by overturning two landmark Court decisions, *Roe* v. *Wade* (1973) and *Planned Parenthood of Southeastern Pennsylvania* v. *Casey* (1992). The dissent castigated the majority for having

decimated women's reproductive freedom by empowering state governments to force pregnant women to give birth. In the process, the authors argued, the majority had undermined women's personal autonomy—robbing them of the ability to control their own bodies and to decide for themselves the course of their future lives—and had curtailed their status as "free and equal citizens."

In *Loper Bright Enterprises* v. *Raimondo* (2024), the Court's majority overturned a nearly 40-year-old Court decision (*Chevron U.S.A., Inc.* v. *National Resources Defense Council, Inc., et al.*) that established "Chevron deference," a rule requiring courts to defer to a federal regulatory agency's reasonable interpretation of an ambiguous federal statute. In her dissenting opinion, joined by Sotomayor and Jackson (though Jackson did not participate in the argument or decision of the case), Kagan argued that Chevron deference is reasonable and reflects—and best serves—the intentions of Congress when it passes legislation that is later determined to be ambiguous or unclear. "This Court," she wrote, "has long understood Chevron deference to reflect what Congress would want, and so to be rooted in a presumption of legislative intent."

Congress knows that it does not—in fact cannot—write perfectly complete regulatory statutes. It knows that those statutes will inevitably contain ambiguities that some other actor will have to resolve, and gaps that some other actor will have to fill. And it would usually prefer that actor to be the responsible agency, not a court.

Indeed, "some interpretive issues…involve scientific or technical subject matter" that only agency experts can discern and apply. The Court's present decision, according to Kagan, thus puts judges in charge of interpreting or implementing technical statutes, which not only prevents Congress's "implicit…delegation of interpretive authority" but also defies common sense.

Michael Levy The Editors of Encyclopaedia Britannica

CITATION INFORMATION

ARTICLE TITLE: Elena Kagan

WEBSITE NAME: Encyclopaedia Britannica

PUBLISHER: Encyclopaedia Britannica, Inc.

DATE PUBLISHED: 21 February 2026

URL: https://www.britannica.com/biography/Elena-Kagan

ACCESS DATE: March 12, 2026